CHAPTER 8 · DEEP DIVE · A HOUSE DIVIDED

The 13th Amendment

The war freed people by proclamation and by force. This is how freedom was finally written into the Constitution itself. 1865.

Name: _____ **Period:** _____ **Date:** _____

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Why wasn't the Emancipation Proclamation enough — and what did it take to make freedom permanent?

Why a Proclamation Wasn't Enough

THE PROBLEM

The Emancipation Proclamation had been a war measure — it freed the enslaved in rebelling areas using the president's wartime powers. But once the war ended, those powers would end too. Could the courts someday undo it? Did it even reach the border states?

To make freedom permanent and universal, it had to be put somewhere no court or president could reverse: into the Constitution itself.

"The Triumph of Freedom over Slavery" — print with the text of the Thirteenth Amendment and the roll of ayes, public domain (Library of Congress).

Freedom Becomes Law

1865

The Thirteenth Amendment, with the roll of congressmen who voted "aye," printed as a monument to the moment slavery was abolished by the nation's highest law.

"The Triumph of Freedom over Slavery" — print with the text of the Thirteenth Amendment and the roll of ayes, public domain (Library of Congress).

A Hard-Won Two-Thirds

THE VOTE

Amending the Constitution requires a two-thirds vote of Congress. The amendment passed the Senate easily, but it stalled in the House. Lincoln pushed hard, trading favors and twisting arms to win over the final votes.

On January 31, 1865, the House passed it. The chamber erupted in cheers. By December 1865 it was ratified by the states — and slavery was abolished everywhere in the United States, forever.

Joint Resolution submitting the Thirteenth Amendment to the states, signed by Abraham Lincoln, February 1, 1865 — manuscript, public domain (Library of Congress).

Signed by the President's Own Hand

FEBRUARY 1, 1865

A president's signature isn't required to amend the Constitution — but Lincoln signed the joint resolution anyway, adding a rare personal mark to the document that ended slavery.

Joint Resolution submitting the Thirteenth Amendment to the states, signed by Abraham Lincoln, February 1, 1865 — manuscript, public domain (Library of Congress).

THE THIRTEENTH AMENDMENT, SECTION 1

Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States …

A Door Left Open

THE FINE PRINT

Read the amendment carefully, and you find a crucial exception: slavery is abolished “except as a punishment for crime.” That clause would later be used to force Black Southerners into convict labor through unjust arrests — a loophole with a long and painful history.

Still, the Thirteenth Amendment was a revolution. For the first time, the Constitution — which had once protected slavery — now abolished it. It was the first of the three “Reconstruction Amendments” that form a “second founding” of the nation.

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Read the Amendment

YOUR TURN

You'll read the actual text of the Thirteenth Amendment and practice document analysis — pinning down exactly what it did, what it left open, and why it mattered.